

BYLAWS OF SLOW DOWN 4 SAM

A Michigan Nonprofit Corporation

Adopted: _____, 20____

These Bylaws are adopted pursuant to the Michigan Nonprofit Corporation Act, Act 162 of 1982, as amended (the "Act"), for the regulation and management of the affairs of Slow Down 4 Sam (the "Corporation"). These Bylaws shall not be inconsistent with the Act or the Articles of Incorporation. Capitalized terms not defined herein have the meanings given in the Act.

ARTICLE I — NAME AND OFFICES

Section 1.1. Name.

The name of the Corporation is Slow Down 4 Sam.

Section 1.2. Principal Office.

The principal office of the Corporation shall be located in the State of Michigan at such place as the Board of Directors (the "Board") may designate from time to time. The Corporation may also have offices at such other places within or without the State of Michigan as the Board may determine.

Section 1.3. Registered Office and Resident Agent.

The Corporation shall maintain a registered office and a resident agent in the State of Michigan as required by the Act. The Board may change the registered office or resident agent in the manner provided by law.

ARTICLE II — PURPOSES AND LIMITATIONS

Section 2.1. Purposes.

The Corporation is organized exclusively for charitable and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"), or the corresponding provision of any future United States internal revenue law. Without limiting the foregoing, the specific purposes of the Corporation are:

(a) To educate young adults and the public about motorcycle safety, responsible riding habits, and awareness on Michigan roads;

- (b) To develop, publish, and distribute educational materials, open-source tools, and community resources that promote motorcycle safety;
- (c) To conduct community outreach, training, and awareness programs designed to prevent motorcycle-related injuries and fatalities; and
- (d) To honor the memory of Sam Gross by fostering a culture of safer riding and road awareness.

Section 2.2. Limitations.

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, its Directors, officers, or other private persons, except that the Corporation may pay reasonable compensation for services rendered and make payments and distributions in furtherance of its purposes. No substantial part of the activities of the Corporation shall be the carrying on of propaganda, or otherwise attempting to influence legislation, and the Corporation shall not participate in, or intervene in (including the publishing or distributing of statements), any political campaign on behalf of or in opposition to any candidate for public office. Notwithstanding any other provision of these Bylaws, the Corporation shall not carry on any activities not permitted to be carried on (a) by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or (b) by a corporation, contributions to which are deductible under Section 170(c)(2) of the Code.

Section 2.3. Nondiscrimination.

The Corporation shall not discriminate on the basis of race, color, national origin, ancestry, sex, sexual orientation, gender identity, religion, age, disability, marital status, veteran status, or any other status protected by applicable law in the administration of its programs, activities, or governance.

ARTICLE III — MEMBERSHIP

Section 3.1. No Voting Members.

The Corporation is organized on a directorship basis under the Act. The Corporation shall have no members with voting rights. All corporate powers shall be exercised by or under the authority of, and the affairs of the Corporation managed under the direction of, the Board.

Section 3.2. Non-Voting Affiliates and Supporters.

The Board may establish one or more classes of non-voting affiliates, supporters, volunteers, or honorary associates, and may prescribe their privileges and obligations. Such persons shall

have no voting rights, no right to notice of meetings of the Board, and no ownership or residual interest in the assets of the Corporation.

ARTICLE IV — BOARD OF DIRECTORS

Section 4.1. General Powers.

The business, property, and affairs of the Corporation shall be managed by the Board. The Board may exercise all powers of the Corporation and do all lawful acts and things that are not prohibited by law, the Articles of Incorporation, or these Bylaws.

Section 4.2. Number.

The Board shall consist of not fewer than three (3) and not more than nine (9) Directors. The exact number within that range shall be fixed from time to time by resolution of the Board. No decrease in the number of Directors shall have the effect of shortening the term of any incumbent Director.

Section 4.3. Qualifications.

Directors shall be natural persons who are at least eighteen (18) years of age and who support the purposes of the Corporation. Directors need not be residents of the State of Michigan. The Board may adopt additional qualifications by resolution.

Section 4.4. Election and Term.

Directors shall be elected by the Board. Each Director shall serve a term of two (2) years and until a successor is elected and qualified, or until the Director's earlier resignation, removal, or death. Terms may be staggered so that approximately one-half of the Directors are elected each year. Directors may be re-elected without limitation as to the number of terms.

Section 4.5. Resignation.

A Director may resign at any time by delivering written notice to the President or the Secretary. A resignation is effective when the notice is delivered unless the notice specifies a later effective date.

Section 4.6. Removal.

A Director may be removed, with or without cause, by the affirmative vote of a majority of the Directors then in office at a meeting called for that purpose, provided that notice of the proposed removal is given with the notice of the meeting.

Section 4.7. Vacancies.

Any vacancy occurring on the Board, including a vacancy resulting from an increase in the number of Directors, may be filled by the affirmative vote of a majority of the remaining Directors, even if less than a quorum. A Director elected to fill a vacancy shall serve for the unexpired term of the predecessor, or until the next regular election if the vacancy results from an increase in number.

Section 4.8. Compensation.

Directors shall not receive compensation for their services as Directors. Directors may be reimbursed for reasonable expenses incurred in the performance of their duties, as authorized by the Board. Nothing in this Section shall preclude a Director from serving the Corporation in another capacity and receiving reasonable compensation for such service, subject to the conflict-of-interest policy.

ARTICLE V — MEETINGS OF THE BOARD

Section 5.1. Annual Meeting.

The Board shall hold an annual meeting each year at such time and place as the Board may determine, for the election of officers, review of the Corporation's affairs, and the transaction of such other business as may come before the meeting.

Section 5.2. Regular Meetings.

The Board may provide by resolution the time and place for holding regular meetings without other notice than such resolution. The Board shall hold at least four (4) regular meetings each fiscal year.

Section 5.3. Special Meetings.

Special meetings of the Board may be called by the President or by any two (2) Directors. The person or persons calling the meeting shall fix the time and place.

Section 5.4. Notice.

Notice of any special meeting shall be given at least three (3) days before the meeting by written notice delivered personally, by mail, or by electronic transmission (including email) to each Director at the address or electronic address on the records of the Corporation. Notice of a meeting need not be given to any Director who signs a waiver of notice, before or after the meeting, or who attends the meeting without protesting, prior to or at its commencement, the lack of notice. Neither the business to be transacted at, nor the purpose of, any regular or special meeting need be specified in the notice or waiver of notice unless required by law or

these Bylaws, except that notice of a proposed removal of a Director or officer, or of a proposed amendment of these Bylaws, shall state that purpose.

Section 5.5. Quorum.

A majority of the Directors then in office shall constitute a quorum for the transaction of business. If a quorum is not present, a majority of the Directors present may adjourn the meeting from time to time without further notice.

Section 5.6. Manner of Acting.

The act of a majority of the Directors present at a meeting at which a quorum is present shall be the act of the Board, unless the Act, the Articles of Incorporation, or these Bylaws require a greater number.

Section 5.7. Remote Participation.

A Director may participate in a meeting by means of conference telephone, videoconference, or similar communications equipment by which all persons participating in the meeting can hear each other. Participation in this manner constitutes presence in person at the meeting.

Section 5.8. Action Without a Meeting.

Any action required or permitted to be taken at a meeting of the Board may be taken without a meeting if, before or after the action, all Directors then in office consent to the action in writing or by electronic transmission. The written consents shall be filed with the minutes of the proceedings of the Board. Such action has the same effect as a vote of the Board at a meeting.

Section 5.9. Presumption of Assent.

A Director who is present at a meeting of the Board at which action on any corporate matter is taken shall be presumed to have assented to the action unless the Director's dissent is entered in the minutes of the meeting or the Director files a written dissent with the person acting as secretary of the meeting before its adjournment or forwards such dissent by registered mail to the Secretary immediately after adjournment. The right to dissent does not apply to a Director who voted in favor of the action.

ARTICLE VI — OFFICERS

Section 6.1. Officers.

The officers of the Corporation shall be a President, a Secretary, and a Treasurer. The Board may also elect a Vice President and such other officers as it deems necessary. Any two or more

offices may be held by the same person, except that the offices of President and Secretary shall not be held by the same person.

Section 6.2. Election and Term.

Officers shall be elected by the Board at the annual meeting, or at such other time as the Board may determine. Each officer shall hold office for one (1) year and until a successor is elected and qualified, or until the officer's earlier resignation, removal, or death. Officers may be re-elected without limitation.

Section 6.3. Removal and Resignation.

Any officer may be removed by the Board, with or without cause, whenever in its judgment the best interests of the Corporation will be served thereby. An officer may resign at any time by delivering written notice to the President or the Secretary.

Section 6.4. Vacancies.

A vacancy in any office may be filled by the Board for the unexpired portion of the term.

Section 6.5. President.

The President shall be the chief executive officer of the Corporation, shall preside at all meetings of the Board, shall have general and active management of the business of the Corporation, and shall see that all orders and resolutions of the Board are carried into effect. The President shall have such other powers and duties as the Board may prescribe.

Section 6.6. Vice President.

If a Vice President is elected, the Vice President shall perform the duties of the President in the President's absence or inability to act, and shall have such other duties as the Board or the President may assign.

Section 6.7. Secretary.

The Secretary shall keep the minutes of the meetings of the Board; see that all notices are duly given in accordance with these Bylaws or as required by law; be custodian of the corporate records; keep a register of the contact information of each Director; and in general perform all duties incident to the office of Secretary and such other duties as the Board or the President may assign.

Section 6.8. Treasurer.

The Treasurer shall have charge and custody of and be responsible for all funds and securities of the Corporation; receive and give receipts for moneys due and payable to the Corporation; deposit all such moneys in the name of the Corporation in such banks or other depositories as the Board shall select; keep complete and accurate books of account; and in general perform all duties incident to the office of Treasurer and such other duties as the Board or the President may assign. The Treasurer shall render to the Board, at the annual meeting and whenever requested, an account of the financial condition of the Corporation.

ARTICLE VII — COMMITTEES

Section 7.1. Committees of the Board.

The Board may create one or more committees and appoint members of the Board to serve on them. Each committee shall have two or more Directors, who shall serve at the pleasure of the Board. To the extent specified by the Board, a committee may exercise the authority of the Board, except that a committee may not: (a) fill vacancies on the Board or any committee; (b) amend the Articles of Incorporation; (c) adopt, amend, or repeal these Bylaws; (d) approve a plan of merger or dissolution; or (e) take any other action that the Act prohibits a committee from taking.

Section 7.2. Advisory Committees.

The Board may create advisory committees composed of Directors, non-Directors, or both. Advisory committees shall have no authority to bind the Corporation.

Section 7.3. Committee Procedures.

The provisions of these Bylaws governing meetings, action without meetings, notice, waiver of notice, quorum, and voting of the Board apply to committees and their members.

ARTICLE VIII — CONFLICT OF INTEREST

Section 8.1. Policy.

The Corporation shall adopt and maintain a written conflict-of-interest policy consistent with the requirements of the Internal Revenue Service for organizations exempt under Section 501(c)(3) of the Code. Each Director and officer shall annually sign a statement affirming that the person has received a copy of the policy, has read and understands it, and agrees to comply with it.

Section 8.2. Disclosure and Recusal.

A Director or officer who has a direct or indirect financial interest in a transaction or arrangement under consideration by the Corporation shall disclose the existence of the interest and all

material facts to the Board. After disclosure, the interested person shall leave the meeting during the discussion of, and the vote on, the transaction or arrangement. The remaining Directors shall determine whether a conflict exists and whether the transaction is fair and reasonable to the Corporation and in its best interest.

Section 8.3. Records.

The minutes of the Board shall contain the names of persons who disclosed or otherwise were found to have an interest, the nature of the interest, the names of persons present for discussion and vote, the content of the discussion, and a record of any vote taken.

ARTICLE IX — INDEMNIFICATION AND INSURANCE

Section 9.1. Indemnification.

To the fullest extent permitted by the Act, the Corporation shall indemnify any person who was or is a party, or is threatened to be made a party, to any threatened, pending, or completed action, suit, or proceeding, whether civil, criminal, administrative, or investigative, by reason of the fact that the person is or was a Director, officer, employee, or volunteer of the Corporation, or is or was serving at the request of the Corporation as a director, officer, partner, trustee, employee, or agent of another entity, against expenses (including attorneys' fees), judgments, fines, and amounts paid in settlement actually and reasonably incurred by the person in connection with such action, suit, or proceeding, if the person acted in good faith and in a manner the person reasonably believed to be in or not opposed to the best interests of the Corporation and, with respect to any criminal action or proceeding, had no reasonable cause to believe the conduct was unlawful.

Section 9.2. Advancement of Expenses.

The Corporation may advance expenses incurred in defending any proceeding in advance of its final disposition, upon receipt of an undertaking by or on behalf of the person to repay such amount if it is ultimately determined that the person is not entitled to indemnification.

Section 9.3. Insurance.

The Corporation may purchase and maintain insurance on behalf of any person who is or was a Director, officer, employee, or volunteer of the Corporation against any liability asserted against the person and incurred by the person in any such capacity, or arising out of the person's status as such, whether or not the Corporation would have the power to indemnify the person against such liability.

Section 9.4. Limitation.

Indemnification shall not be provided to the extent it would be inconsistent with the Corporation's status as an organization described in Section 501(c)(3) of the Code, or to the extent prohibited by the Articles of Incorporation or the Act. This Article does not eliminate or limit the liability of a Director or officer for any of the following: (a) a breach of the duty of loyalty; (b) acts or omissions not in good faith or that involve intentional misconduct or a knowing violation of law; (c) a transaction from which the Director or officer derived an improper personal benefit; or (d) an act or omission occurring before the effective date of any liability-limitation provision in the Articles of Incorporation.

ARTICLE X — FINANCES, RECORDS, AND FISCAL YEAR

Section 10.1. Fiscal Year.

The fiscal year of the Corporation shall begin on January 1 and end on December 31, unless the Board adopts a different fiscal year by resolution.

Section 10.2. Contracts.

The Board may authorize any officer or officers, agent or agents, to enter into any contract or execute and deliver any instrument in the name of and on behalf of the Corporation. Such authority may be general or confined to specific instances.

Section 10.3. Checks and Deposits.

All checks, drafts, or other orders for the payment of money, notes, or other evidences of indebtedness issued in the name of the Corporation shall be signed by such officer or officers, agent or agents of the Corporation and in such manner as the Board shall determine. All funds of the Corporation not otherwise employed shall be deposited to the credit of the Corporation in such banks, trust companies, or other depositories as the Board may select.

Section 10.4. Gifts.

The Board may accept on behalf of the Corporation any contribution, gift, bequest, or devise for the general purposes or for any special purpose of the Corporation, provided acceptance is consistent with the Corporation's tax-exempt purposes and any gift-acceptance policy adopted by the Board.

Section 10.5. Books and Records.

The Corporation shall keep correct and complete books and records of account and shall keep minutes of the proceedings of its Board and committees. The Corporation shall keep at its principal office a copy of its Articles of Incorporation, these Bylaws, and all amendments. Directors shall have the right to inspect the books and records of the Corporation as provided by the Act.

Section 10.6. Annual Financial Review.

The Board shall cause the financial records of the Corporation to be reviewed or, if the Board so determines or if required by law or a funder, audited, at least annually. The Board shall review a financial report at least quarterly.

ARTICLE XI — AMENDMENT

Section 11.1. Amendment of Bylaws.

These Bylaws may be amended or repealed, and new Bylaws adopted, by the affirmative vote of a majority of the Directors then in office at any regular or special meeting of the Board, provided that notice of the proposed amendment is given with the notice of the meeting, or that all Directors waive such notice. No amendment shall be made that is inconsistent with the Articles of Incorporation or that would cause the Corporation to cease to qualify as an exempt organization under Section 501(c)(3) of the Code.

ARTICLE XII — DISSOLUTION

Section 12.1. Dissolution.

Upon the dissolution of the Corporation, the Board shall, after paying or making provision for the payment of all of the liabilities of the Corporation, dispose of all of the assets of the Corporation exclusively for the purposes of the Corporation in such manner, or to such organization or organizations organized and operated exclusively for charitable or educational purposes as shall at the time qualify as an exempt organization or organizations under Section 501(c)(3) of the Code, as the Board shall determine. Any such assets not so disposed of shall be disposed of by a court of competent jurisdiction of the county in which the principal office of the Corporation is then located, exclusively for such purposes or to such organization or organizations as said court shall determine, which are organized and operated exclusively for such purposes.

ARTICLE XIII — MISCELLANEOUS

Section 13.1. Governing Law.

These Bylaws shall be governed by and construed in accordance with the laws of the State of Michigan.

Section 13.2. Severability.

If any provision of these Bylaws is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

Section 13.3. Construction.

Headings are for convenience only and shall not affect interpretation. Words importing the singular include the plural and vice versa. References to the Act or the Code include corresponding provisions of any successor statute.

Section 13.4. Electronic Transmissions.

To the extent permitted by the Act, notices, consents, and other communications required or permitted by these Bylaws may be given by electronic transmission.

Section 13.5. Parliamentary Authority.

The rules contained in the current edition of Robert's Rules of Order Newly Revised shall govern the Corporation in all cases to which they are applicable and in which they are not inconsistent with these Bylaws, the Articles of Incorporation, or applicable law. The Board may suspend such rules by majority vote.

CERTIFICATE OF ADOPTION

The undersigned, being the Secretary of Slow Down 4 Sam, a Michigan nonprofit corporation, hereby certifies that the foregoing Bylaws were duly adopted by the Board of Directors (or by the incorporators) of the Corporation on the date set forth below, and that they constitute the Bylaws of the Corporation.

Date: _____, 20____

Name: _____

Title: Secretary

Approved by the Board:

Date: _____

President

In memory of Sam Gross. Ride safe. Slow down.